

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-09

FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC and FCA Italy S.p.A.,

v.

**WALLENIS WILHELMSSEN LOGISTICS AS, WALLENIS WILHELMSSEN
LOGISTICS AMERICAS LLC, EUKOR CAR CARRIERS INC., NIPPON YUSEN
KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC., MITSUI O.S.K.
LINES, LTD., MOL (AMERICA) INC., KAWASAKI KISEN KAISHA, LTD., “K”
LINE AMERICA, INC., COMPAÑÍA SUD AMERICANA DE VAPORES, AND
HOEGH AUTOLINERS AS,**

COMPLAINANTS BRIEF IN OPPOSITION TO RESPONDENTS’

SUPPLEMENTAL CONSOLIDATED MOTION TO DISMISS

TABLE OF CONTENTS

INDEX OF AUTHORITIES.....	ii
I. INTRODUCTION	1
II. PRELIMINARY STATEMENT	2
III. STATEMENT OF FACTUAL AND PROCEDURAL HISTORY.....	2
IV. ARGUMENT.....	3
A. FCA’s Claims are Not Barred by the Statute of Limitations.....	4
1. Respondents’ “Discovery Rule” Argument Improperly Relies on Facts Outside of the Complaint.....	4
2. FCA Has Alleged Continuing Violations of the Shipping Act within the Limitations Period.....	6
3. The Statute of Limitations was Tolled by The Class Actions Filed in Federal Court.....	9
B. FCA has Pleaded Plausible Shipping Act Claims.....	10
C. FCA Has Standing to Pursue its Claims	12
V. CONCLUSION.....	13

TABLE OF CONTENTS

INDEX OF AUTHORITIES	ii
I. INTRODUCTION	1
II. PRELIMINARY STATEMENT	2
III. STATEMENT OF FACTUAL AND PROCEDURAL HISTORY	2
IV. ARGUMENT	3
A. FCA’s Claims are Not Barred by the Statute of Limitations	4
1. Respondents’ “Discovery Rule” Argument Improperly Relies on Facts Outside of the Complaint	4
2. FCA Has Alleged Continuing Violations of the Shipping Act within the Limitations Period	6
3. The Statute of Limitations was Tolloed by The Class Actions Filed in Federal Court	9
B. FCA has Pleaded Plausible Shipping Act Claims	10
C. FCA Has Standing to Pursue its Claims.....	12
V. CONCLUSION	13

INDEX OF AUTHORITIES

Cases

<i>Ashcroft v. Iqbal</i> , 556 U.S. 662 (2009)	2, 5, 10, 12
<i>Bell At. Corp. v. Twombly</i> , 550 U.S. 544 (2007)	2, 5, 10, 12
<i>Crown, Cork & Seal Co. v. Parker</i> , 462 U.S. 345 (1983)	9, 10
<i>Daniel v. Am. Bd. of Emergency Med.</i> , 988 F. Supp. 112 (W.D.N.Y. 1997)	8
<i>DeNovellis v. Shalala</i> , 124 F.3d 298 (1st Cir. 1997)	8
<i>Government of Guam v. American President Lines, Ltd.</i> , 809 F. Supp. 150 (1993)	9
<i>Holt Cargo Systems, Inc., et al., v. Delaware River Port Authority</i> Dkt. No. 96-13, 1998 WL 940863 (Nov. 12, 1998)	12
<i>Maher Terminals, LLC v. Port Auth. Of New York and New Jersey</i> , Dkt. No. 08-03, 2011 WL 7144003 (May 16, 2011)	7
<i>Maher Terminals, LLC v. Port Authority of New York and New Jersey</i> , Dkt. No. 12-02, 2015 WL 9426189 (Dec. 18, 2015)	6, 10, 11, 12
<i>Possible Unfiled Agreement Among A.P. Moller-Maersk Line, P&O NedLloyd Limited and Sea-Land Service, Inc.</i> , Dkt. No. 97-08, 1998 WL 940794 (June 23, 1998)	12
<i>Seatrain Gitmo, Inc. v. Puerto Rico Maritime Shipping Auth.</i> , 18 S.R.R. 1079 (ALJ 1979)	8
<i>Streak Prods., Inc. v. UTi United States, Inc.</i> , Dkt. No. 13-04, 2013 WL 9808687 (Oct. 23, 2013)	5, 6
<i>Swanson v. Citibank, N.A.</i> , 614 F.3d 400 (7th Cir. 2010)	11

Statutory Authorities

46 U.S.C. § 40301	10
46 U.S.C. § 40302	10
46 U.S.C. § 40302(a).....	11
46 U.S.C. § 41102(b)(1).....	11
46 U.S.C. § 41102(c).....	11
46 U.S.C. § 40302(a).....	11
46 U.S.C. § 41102(b)(1).....	11
46 U.S.C. § 41102(c).....	11
46 U.S.C. § 41103(a)(1)	11
46 U.S.C. § 41103(2).....	11
46 U.S.C. § 41104(10).....	11
46 U.S.C. § 41105(1).....	11
46 U.S.C. § 41105(6).....	11

Rules and Regulations

46 CFR § 535.401 et seq.....	11
------------------------------	----

I. INTRODUCTION

In moving to dismiss the complaint filed by Fiat Chrysler Automobiles NV, FCA US LLC, and FCA Italy S.p.A (collectively “FCA”), Respondents¹ have filed a document that is captioned as a motion to dismiss, but is really a poorly-disguised – and wholly inappropriate -- attempt to win summary judgment at the pleading stage. Just as they did when they moved to dismiss in dockets 16-01, 16-07, 16-10 and 16-11, Respondents have spent most of their brief arguing that their cherry-picked collection of *extrinsic facts*, none of which is alleged in the complaint and none of which has anything to do with FCA or its claims, somehow proves that FCA’s claims are time-barred as a matter of law. Similarly, the rest of their brief consists of variations on the theme that FCA was required not just to plead facts that put Respondents on notice of FCA’s claims, but to provide evidentiary detail in support of those claims – right down to the specific terms of FCA’s contracts with the Respondents, which they know as well as FCA does. What respondents do not do – because they cannot – is convincingly claim that FCA’s complaint leaves them in the dark about the bases of FCA’s claims against them. Instead, their motion is premised on the idea that FCA was, for some reason, required to do *more* than simply state a claim for relief.

Nonsense. The pleading standard that Respondents ask to be applied to FCA’s

¹ As used herein, “Respondents” refers collectively to Wallenius Wilhelmsen Logistics AS (“WWL”), Wallenius Wilhelmsen Logistics Americas LLC (“WWL America”), EUKOR Car Carriers Inc. (“EUKOR”), Nippon Yusen Kabushiki Kaisha (“NYK”), NYK Line (North America) Inc. (“NYK America”), Mitsui O.S.K. Lines, Ltd. (“MOL”), MOL (America) Inc., MOL (America) Inc., Kawasaki Kisen Kaisha, Ltd. (“K-Line”), “K” Line America, Inc. (“K-Line America”), Compañía Sud Americana de Vapores (“CSAV”), and Hoëgh Autoliners AS (“Hoëgh”).

complaint is far beyond what is required to state a claim for Shipping Act violations under *Twombly* and *Iqbal*. Similarly, Respondents' arguments that FCA's claims are time barred are clearly inappropriate, both because they rely on a factual record that is extrinsic to the complaint and, indeed, does not yet exist, and because they ignore FCA's allegations that Respondents' continuing violations of the Shipping Act have injured FCA up to the present day. Respondents' motion should be denied.

II. PRELIMINARY STATEMENT

In accordance with the October 18, 2017 initial scheduling order, which instructed the parties to identify the issues and arguments previously briefed that apply to this proceeding, FCA states that it relies on and incorporates by reference the following arguments made in the Consolidated Response of Complainants to Respondents' Consolidated Motion to Dismiss filed on August 8, 2016:

- Complainants' arguments on pages 5-16 of their brief that the statute of limitations do not bar the claims;
- Complainants' arguments on pages 16-25 of their brief that they have standing to pursue their claims;
- Complainants' arguments on pages 45-60 of their brief that their causes of action under the Shipping Act are properly pleaded.

III. STATEMENT OF FACTUAL AND PROCEDURAL HISTORY

FCA has alleged that it "purchased hundreds of millions of dollars' worth of roll on, roll off cargo services from Respondents and their co-conspirators" pursuant to former and current agreements with Respondents and their co-conspirators from at least 1997 to present. Compl. ¶ 23. The terms of those contracts, unbeknownst to FCA, were the subject and result of secret and illegal agreements between Respondents to fix prices and allocate customers, causing FCA to pay higher prices than it would have paid in a

competitive market. *Id.* Moreover, FCA has alleged that the prices it pays to the Respondents have continued, to this day, to be the result of the illegal agreements between the Respondents, and that Respondents are therefore continuing to impose illegal and excessive prices on FCA. Compl. ¶¶ 23-32. None of the secret, anticompetitive agreements were filed with the Federal Maritime Commission. Compl. ¶ 39. Respondents have already admitted that they are guilty of these allegations, and they have paid hefty fines for conspiring with their competitors to reduce competition for roll on/roll off cargo services, the very actions alleged in FCA's complaint. Compl. ¶¶ 32-39.

Based on Respondents' admissions that they fixed prices, rigged bids, and restricted capacity, and the damages FCA suffered as a result of Respondents' violations of the Shipping Act, FCA is pursuing reparations for difference between the anticompetitive prices that Respondents actually charged and the prices FCA would have paid in a market in which Respondents abided by the Shipping Act.

IV. ARGUMENT

Respondents argue that FCA's complaint is legally deficient because (1) its reparations claim is barred by the statute of limitations; (2) it failed to state a cognizable Shipping Act claim; and (3) it lacks standing to seek reparations. Respondents' arguments all fail as a matter of law.

Respondents' argument that FCA's claims are time-barred fail for two, independent reasons. First, no portion of FCA's claims are time-barred, because the running of the applicable limitations period was tolled both by Respondents' concealment of their illegal behavior, and by the pendency of the antitrust class action which immediately proceeded this case. Second, even if some portion of FCA's claims were

untimely, FCA would still have other, plainly timely claims based on Respondents' continuing violations of the Shipping Act into the limitations period urged by Respondents.

Respondents' argument that FCA's Shipping Act claims fail to meet the *Twombly/Iqbal* standard for pleading are similarly infirm; FCA has pleaded facts sufficient to put Respondents on notice of its claims, which is all that is required. And Respondents' argument that FCA has failed to establish its standing to sue under the Shipping Act fails because FCA has alleged facts demonstrating that it purchased shipping services directly from Respondents and their co-conspirators – the very allegations that Respondents acknowledged were sufficient in their prior motion to dismiss. Resp.'s Br. ISO Consolidated MTD p. 33-38. Nothing more is required at the pleading stage. Respondents' motion should be denied.

A. FCA's Claims are Not Barred by the Statute of Limitations

1. Respondents' "Discovery Rule" Argument Improperly Relies on Facts Outside of the Complaint

Respondents' argument that FCA's claims are time-barred are largely duplicative of the arguments they made in their prior motion to dismiss, *compare* Resp.'s Br. ISO Consolidated MTD p. 6-21 *with* Resp.'s Supp. Consolidated MTD p. 3-14, and they fail here for the same reasons they fail there. Compl.'s Consolidated Response Br. p. 5-16. Like the claimants in the other cases, FCA has affirmatively alleged that it was unaware of the Respondents' Shipping Act violations at the time those violations were committed, and that it could not have discovered Respondents' wrongdoing prior to the running of the three-year limitations period. Compl. ¶¶ 42-47. FCA was not required to do more at

the pleading stage,² and Respondents have not pointed to any facts actually alleged in the complaint demonstrating that the limitations period has run. Respondents' statute of limitations argument is an affirmative defense on which they bear the burden of proof, and they cannot win dismissal merely by hypothesizing about its applicability to FCA's claims. *See Streak Prods., Inc. v. UTi United States, Inc.*, Dkt. No. 13-04, 2013 WL 9808687, at *9 (Oct. 23, 2013). That is all they have done here, and it is not enough to support their motion.

None of the above is changed by Respondents' various arguments that certain extrinsic facts – such as news reports of “dawn raids” on September 6, 2012, or the fact that GM filed suit in September 2015 – are somehow evidence that FCA should have discovered Respondents' wrongdoing earlier. Whatever evidentiary value these “facts” may have if and when Respondents move for summary judgment – and FCA submits they will have little – they have no place on this motion, which is properly limited to the matters alleged in the complaint. *See Streak Prods.*, 2013 WL 9808687, at *9; *Maher Terminals, LLC v. Port Authority of New York and New Jersey*, Dkt. No. 12-02, 2015 WL 9426189, at * 38 (Dec. 18, 2015).

Respondents place particular weight on the fact that GM sued them in September 2015, arguing that (1) the fact that GM sued almost exactly three years after the “dawn

² FCA's allegations must be taken as true as long as they are not “threadbare recitals of the elements of a cause of action, supported by mere conclusory statements” FCA's allegations must be taken as true. *See Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009); *see also Bell At. Corp. v. Twombly*, 550 U.S. 544, 556-570 (2007). FCA's allegations easily meet this test, and Respondents' suggestion that FCA was required to plead, with specificity, when and how it discovered Respondents' wrongdoing finds no support in the law.

raids” is proof that those dawn raids tipped GM off to Respondents’ wrongdoing,³ and (2) if the “dawn raids” were enough to alert GM, they were enough to alert every other potential claimant – as a matter of law. Resp.’s Br. ISO Consolidated MTD p. 5-6. But simply repeating this argument is enough to demonstrate how inappropriate it is on a motion to dismiss. Respondents point to extrinsic evidence (news reports about the dawn raids, the date GM filed suit), arguing that certain inferences must be drawn from that evidence (news of the dawn raids was “widely publicized,” GM sued in September 2015 because it discovered its claims in September 2012), and insisting that the same inferences be drawn against FCA (if news about the dawn raids was enough to tip off GM, it was enough to tip off FCA, too). Resp.’s Br. ISO Consolidated MTD p. 5-7. None of this is proper at this stage of the case; these are arguments that get made, and decided, on summary judgment, not a motion to dismiss. *See Maher Terminals*, 2015 WL 9426189, at *38. FCA is entitled to its own day in court on this question, and Respondents’ arguments cannot be resolved until after FCA has been afforded an opportunity to develop a full evidentiary record. Their motion should be denied.

2. FCA Has Alleged Continuing Violations of the Shipping Act within the Limitations Period

Moreover, Respondents’ motion would be infirm even if they could show that

³ Respondents make much of the fact that GM, when it filed its own complaint, supposedly “admitted” that the September 2012 dawn raids put it on notice of its claim against Respondents. This gets them nowhere, for two reasons. First, it is an untenable reading of GM’s complaint, which in fact appears to allege only that GM could not have discovered its claims before the dawn raids occurred. *See* GM Compl. ¶¶ LLLL, RRRR, SSSS, UUUU. That is hardly an admission that it was actually those raids that put GM on notice, or that they did so the same day the raids happened. Second, even if GM had made this admission, it would not prove anything about when FCA discovered, or should have discovered, its claims; FCA cannot be bound by another party’s admission.

some portion of FCA's claims are time-barred, because FCA has alleged violations of the Shipping Act within the last three years. Specifically, FCA has alleged that Respondents have continued to enter into agreements with FCA and "[b]ecause the current prices for roll on, roll off cargo transport services are based on historic prices, FCA continues to be injured by the secret, unfiled agreements today." Compl. ¶¶ 31, 47, 56, 58, 61. This is an allegation that Respondents' violations of the Shipping Act continue to this day, and FCA continues to suffer new, distinct injuries as a result of those violations. Respondents have conceded that a Shipping Act claim accrues when the claimant pays the illegal price, Resp.'s Br. ISO Consolidated MTD p. 6, 11, which means that FCA has continued accruing new claims against Respondents up to the present day. Even if certain of FCA's older claims are barred by the statute of limitations – and FCA does not believe they are – it would not warrant dismissal of the claims that FCA has accrued since October 2014, three years before it filed suit.

Respondents' reliance on *Maher Terminals, LLC v. Port Auth. Of New York and New Jersey*, Dkt. No. 08-03, 2011 WL 7144003 (May 16, 2011) is misplaced. *Maher* addressed the question whether a claim is time-barred when the **violation** occurs outside the limitations period, but the **effects** continue within it. The Petitioner in *Maher* admitted both (1) that the violation which gave rise to its claim occurred outside the limitations period, and (2) that it was aware of the violation when it happened. *Id.* at 6, 12-13. Based on these admissions, the ALJ dismissed the claim for reparations as time-barred, reasoning that the limitations period began running at the time of the violation even if the effects continued for a longer period. *Id.* at 18, 21.

Maher is inapplicable here because FCA has alleged that Respondents' violations

of the Shipping Act continued within the limitations period, as Respondents continued to impose prices that violate the Act after October 2014. For this reason, *Seatrain Gitmo, Inc. v. Puerto Rico Maritime Shipping Auth.*, 18 S.R.R. 1079 (ALJ 1979), is a more apt authority than *Maher*. In *Seatrain*, the ALJ denied the Respondent's motion to dismiss on statute of limitations grounds because the Complainant had alleged continuing discriminatory conduct and the ALJ concluded that each instance of the Respondent barring the Petitioner from berthing was a "new act giving rise to alleged injury." *Id.* at 1082. Nor is *Seatrain* unique: numerous federal courts have recognized the distinction between continuing effects and continuing violations, holding that in the latter case a new cause of action accrues every time a plaintiff is injured by the defendant, regardless of whether the wrongful conduct began outside the limitations period. *See e.g., DeNovellis v. Shalala*, 124 F.3d 298, 309 (1st Cir. 1997) ("the Court has made it clear that the focus of the inquiry in continuing violation cases should be on 'whether any present violation exists,' not whether there are residual effects of past discriminatory conduct to which the statute does not apply."); *Daniel v. Am. Bd. of Emergency Med.*, 988 F. Supp. 112, 121–22 (W.D.N.Y. 1997) ("As this continuing antitrust conduct results in a continued invasion of a plaintiff's rights, these acts give rise to continually accruing rights of action.").

FCA has alleged that it has been continually injured by Respondents' anticompetitive pricing, which was memorialized by Respondents in unfiled agreements, and every new sale that Respondents made to FCA was an overt act that starts a new limitations period. Each and every time Respondents charged FCA the anticompetitive price and included it a new contract, without making FCA aware that it was an anticompetitive price or filing the price fixing agreement with the FMC, Respondents

violated the Shipping Act. Indeed, to hold otherwise would allow Respondents to continue to violate the Shipping Act unabated and would forever immunize Respondents from suit.⁴ Respondents' motion to dismiss should be denied.

**3. The Statute of Limitations was Tolloed by The Class Actions
Filed in Federal Court**

Moreover, FCA is entitled to rely on the tolling that occurred after the class action complaints were filed in federal court. FCA will not repeat the arguments made by Complainants in the consolidated response in detail, but notes that the United State District Court for the District of Columbia opined that the class action tolling rule established in *Crown, Cork & Seal Co. v. Parker*, 462 U.S. 345, 354 (1983) should apply to factual circumstances such as are found in this case – where there is a dispute over the forum where a Shipping Act claim can be brought. *Government of Guam v. American President Lines, Ltd.*, 809 F. Supp. 150, 155 (1993). “The same tolling rule will apply to the situation presented here: where class claims are dismissed before a ruling on certification and as part of a decision to dismiss the entire case.” *Id. Guam* and all of the other precedent cited in by Complainants in the consolidated response support the proposition that class action tolling should apply to encourage the efficient litigation of claims. Compl.’s Consolidated Response Br. p. 6-8. If FCA and other claimants were

⁴ Respondents cite K Line’s representation to the FMC in File No. 17098 that it has “terminated the practices which are the basis of the alleged violations set forth herein” as a single example of a Respondent purporting to stop its anticompetitive conduct. Br. p. 9, fn 5. Not only is this fact extraneous to the complaint, it’s is not apparent that the K Line representation had any effect on its relationship with FCA. Whether or not Respondents discontinued their anticompetitive practices is an issue better suited to resolution after discovery is completed.

required to file complaints with the FMC while similar complaints were pending in federal court, the result would be duplicate litigation that would waste of federal resources and may end up with contradictory outcomes on similar claims. That is exactly the inefficiency that class action tolling was designed to prevent and it should be applied in this case. *See e.g., Crown, Cork & Seal*, 462 U.S. at 354.

B. FCA has Pleaded Plausible Shipping Act Claims

Respondents argue that FCA's complaint should be dismissed because it does not contain facts sufficient to state claims under the *Twombly* and *Iqbal* standards. *See Maher Terminals, LLC v. Port Authority of New York and New Jersey*, 2015 WL 9426189, at *8 (FMC 2015) (making clear that the *Twombly/Iqbal* pleading standards apply to FMC complaints). FCA has met and exceeded the factual pleading standards by pleading facts giving rise to an inference that Respondents are liable for the claims alleged. *See Iqbal*, 556 U.S. at 678. The Shipping Act requires ocean common carriers to file all agreements between or among ocean common carriers to:

- “discuss, fix, or regulate transportation rates, including through rates, cargo space accommodations, and other conditions of services”
- “pool or apportion traffic, revenues, earnings, or losses”
- “allot ports or regulate the number and character of voyages between ports”
- “regulate the volume or character of cargo or passenger traffic to be carried”
- “engage in exclusive, preferential, cooperative working arrangement between themselves . . .”
- “control, regulate, or prevent competition in international ocean transportation”
- “discuss and agree on any matter related to a service contract.”

46 U.S.C. §§ 40301, 40302.

FCA has alleged – and Respondents have admitted – that Respondents entered into secret, anticompetitive agreements to reduce competition for roll on, roll off cargo services, and that those agreements were not filed with the FMC. Compl. ¶¶ 32-39. FCA

further alleged that has been continually injured by the unfiled agreements because Respondents based, and continue to base, their charges for roll on, roll off cargo services on those unfiled agreements. Compl. ¶ 3. These allegations are sufficient to state a claim for violation of the Shipping Act. *See* 46 U.S.C. §§ 40302(a), 41102(b)(1), 41102(c), 41103(a)(1), 41103(2), 41104(10), 41105(1), and 41105(6), and the regulations promulgated thereunder, 46 CFR § 535.401 *et seq.* FCA has put Respondents on notice of the claims against them and alleged sufficient fact to show “how the dots should be connected.” *Maier Terminals*, 2015 WL 9426189, at *13 (quoting *Swanson v. Citibank, N.A.*, 614 F.3d 400, 405 (7th Cir. 2010) (internal quotations omitted)). It was not required to do more.

Respondents do not dispute that they are on notice that FCA is pursuing reparations claims based on their failure to file their anticompetitive agreements and refusal to offer FCA competitive prices. Respondents also acknowledge that other Claimants have pursued similar claims, including GM, with whom they reached a confidential settlement. Indeed, much of Respondents’ argument on the statute of limitations reduces to the notion that the substance of FCA’s claims against Respondents is obvious – and has been obvious for years. While that is not correct when it comes to FCA, it is reasonable to take Respondents at their word when it comes to their own knowledge of the facts of this lawsuit. The idea that Respondents, who (1) have already pled guilty to identical violations of the Sherman Act, (2) have been embroiled in litigation over these same claims for years, and (3) are now vigorously arguing that everyone has (or should have) known about their Shipping Act violations since at least 2012, are somehow not sufficiently on notice of the nature or bases of FCA’s claims is patently absurd. And they

are not entitled to insist on anything else from FCA's complaint.

Respondents' real complaint is that FCA did not plead the evidentiary detail of its case: the dates of the parties' contracts, the specific terms that evidence Respondents' Shipping Act violations, the precise amount of Respondents' illegal overcharge, etc. But FCA was not required to do so by *Twombly*, *Iqbal* or any other pleading authority. FCA is required to plead the wrongdoing, not the terms of the parties' commercial relationship. FCA has met that burden by alleging Respondents' violations of the law and facts giving rise to an inference that Respondents committed the legal violation alleged. *See Twombly*, 550 U.S. at 559 (internal quotation marks omitted); *Maher Terminals*, 2015 WL 9426189, at *9.

Moreover, many, if not all, of the facts that Respondents complain FCA did not plead are in the possession of Respondents and as equally known to Respondents as FCA. For example, Respondents complain that FCA did not plead sufficient facts about the agreements between FCA and Respondents; yet, Respondents were parties to the contracts with FCA in which they charged anticompetitive prices and know the dates/terms of those contracts. Respondents have not met their significant burden of showing that FCA's claims are implausible given the facts FCA alleged in the complaint. It would be "improvident and premature" to dismiss FCA's complaint without allowing it to develop the factual record in discovery. *See Holt Cargo Systems, Inc., et al., v. Delaware River Port Authority, et al.*, Dkt. No. 96-13, 1998 WL 940863 (Nov. 12, 1998); *Possible Unfiled Agreement Among A.P. Moller-Maersk Line, P&O NedLloyd Limited and Sea-Land Service, Inc.*, Dkt. No. 97-08, 1998 WL 940794 (June 23, 1998).

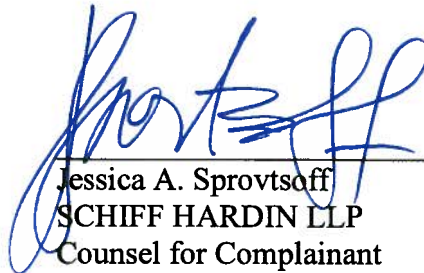
C. FCA Has Standing to Pursue its Claims

Respondents argue, without citing any relevant case law, that FCA does not have standing to bring its claims because FCA did not parse out exactly which FCA entity made purchases from Respondents. Resp.'s MTD Br. 17-18. No such parsing is required to establish that FCA has sufficiently alleged that Respondents caused it injury by charging anticompetitive prices that were arranged for in secret, unfiled agreements. Section § 41301 of the Shipping Act provides that: "A person may file with the Federal Maritime Commission a sworn complaint alleging a violation of this part, except section 41307(b)(1). If the complaint is filed within 3 years after the claim accrues, the complainant may seek reparations for an injury to the complainant caused by the violation." Again, FCA met its burden by making the allegations of the wrongdoing and facts to support its allegations that the FCA entities were injured. Respondents have not identified a fatal pleading issue because FCA has sufficiently alleged that an injury has occurred. The details of the injuries can be adduced in discovery from information equally available to FCA and Respondents.

V. CONCLUSION

For the reasons stated above and in the Consolidated Response of Complainants to Respondents' Consolidated Motion to Dismiss, Respondent's motion should be denied.

Respectfully submitted,



Jessica A. Sprovtsoff
SCHIFF HARDIN LLP
Counsel for Complainant
350 S. Main Street

Suite 210
Ann Arbor, MI 48104
Telephone: 734-222-1518
Fax: 734-222-1501
Email: jsprovtsoff@schiffhardin.com

DATED: January 11, 2018

CERTIFICATE OF SERVICE

I hereby certify that, on January 11, 2018, true and correct copies of the foregoing brief in opposition to respondents' supplemental consolidated motion to dismiss was filed with the Secretary of the Federal Maritime Commission, and electronic copies thereof were sent to all counsel for respondents identified in the respondents' supplemental consolidated motion to dismiss.

DATED: January 11, 2018



Jessica A. Sprovtsoff